# MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the "**Agreement**") is made on 6 October 2026 (the "**Effective Date**").

**BETWEEN**

(1) **KENARI BIRU SYSTEMS SDN. BHD.** (Company No. SAMPLE-MY-0101), a company incorporated in Malaysia with its registered office at Level 9, Menara Contoh, Jalan Contoh 3, 50450 Kuala Lumpur, Malaysia ("**Kenari Biru**"); and

(2) **ORCHIDWAVE LABS PTE. LTD.** (UEN SAMPLE-SG-0102), a company incorporated in Singapore with its registered office at 18 Sample Quay, #04-02, Singapore 000102 ("**Orchidwave**"),

each a "**Party**" and together the "**Parties**".

**BACKGROUND**

(A) Kenari Biru develops warehouse and order management software for retailers in Malaysia. Orchidwave develops payment and checkout software for online merchants in Singapore and the region.

(B) The Parties wish to explore an integration between their products and a possible joint offering to merchants (the "**Purpose**").

(C) In the course of those discussions each Party may disclose confidential information to the other. The Parties have agreed to protect that information on the terms below, which apply equally to both of them.

## 1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement:

"**Confidential Information**" means any information disclosed by or on behalf of a Party (the "**Discloser**") to the other Party (the "**Recipient**") in connection with the Purpose, in any form, that is marked or identified as confidential at the time of disclosure, or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure. It includes technical information, product roadmaps, pricing, customer and merchant information, source code and the fact that the Parties are in discussions.

"**Representatives**" means a Party's directors, employees, professional advisers, auditors and contractors who need to know the Confidential Information for the Purpose.

"**Business Day**" means a day other than a Saturday, Sunday or public holiday in Kuala Lumpur or Singapore.

1.2 Headings are for convenience only. "Including" means "including without limitation".

## 2. OBLIGATIONS OF THE RECIPIENT

2.1 Each Party, as Recipient, shall:

(a) use the Discloser's Confidential Information only for the Purpose;

(b) not disclose it to any person other than its Representatives, and only to the extent they need it for the Purpose;


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(c) ensure its Representatives are bound by duties of confidentiality no less protective than this Agreement, and remain responsible for any breach by them; and

(d) protect it with at least the same degree of care it uses for its own information of a similar nature, and in any case no less than reasonable care.

2.2 The Recipient shall promptly notify the Discloser in writing if it becomes aware of any unauthorised use or disclosure of the Discloser's Confidential Information, and shall take reasonable steps to limit its effect.

## 3. EXCEPTIONS

3.1 The obligations in Clause 2 do not apply to information that the Recipient can show by reasonable evidence:

(a) is or becomes generally available to the public other than through a breach of this Agreement;

(b) was lawfully known to the Recipient before it was disclosed by the Discloser, free of any duty of confidence;

(c) is lawfully received from a third party who is not under a duty of confidence to the Discloser; or

(d) is independently developed by or for the Recipient without use of or reference to the Discloser's Confidential Information.

3.2 **Disclosure required by law.** The Recipient may disclose Confidential Information to the extent required by law, by any court, or by any regulator or stock exchange with authority over it. Where legally permitted, the Recipient shall give the Discloser prompt written notice before disclosure, so that the Discloser may seek a protective order, and shall disclose only the part that is legally required.

## 4. TERM AND DURATION OF CONFIDENTIALITY

4.1 This Agreement starts on the Effective Date and continues for two (2) years, unless ended earlier under Clause 5.

4.2 The obligations in Clauses 2 and 3 continue for three (3) years after the date of each disclosure. For any Confidential Information that is a trade secret (such as source code), the obligations continue for as long as that information remains a trade secret under applicable law.

## 5. TERMINATION AND RETURN OF INFORMATION

5.1 Either Party may end this Agreement at any time by giving the other Party not less than fourteen (14) days' written notice. Ending this Agreement does not affect obligations about Confidential Information already disclosed, which continue for the periods in Clause 4.2.

5.2 Within thirty (30) days after this Agreement ends, or earlier on the Discloser's written request, the Recipient shall return or destroy the Discloser's Confidential Information and, if asked, confirm this in writing. The Recipient may keep copies held in routine electronic back-ups or required to be kept by law or by its internal record-keeping policy, provided that those copies remain subject to this Agreement.

## 6. OWNERSHIP AND NO LICENCE

6.1 All Confidential Information remains the property of the Discloser. Nothing in this Agreement grants the Recipient any licence or other right in the Discloser's intellectual property, except the limited right to use Confidential Information for the Purpose.

6.2 Nothing in this Agreement prevents either Party from developing or acquiring products or services that are similar to those of the other Party, provided it does so without breaching this Agreement.

6.3 Confidential Information is provided "as is". Neither Party gives any warranty as to its accuracy or completeness, except as agreed in a later definitive agreement.

## 7. NO OBLIGATION TO PROCEED

7.1 Neither Party is obliged to disclose any particular information, or to enter into any further agreement. Either Party may end the discussions at any time, for any reason, without liability other than for breach of this Agreement.

## 8. NON-SOLICITATION OF STAFF

8.1 During this Agreement and for twelve (12) months after it ends, neither Party shall directly solicit for employment any employee of the other Party with whom it had material contact in connection with the Purpose.

8.2 This Clause 8 does not apply to general recruitment advertising or recruitment agency searches not directed specifically at the other Party's employees, or to hiring any person who responds to such advertising or approaches a Party on their own initiative.

## 9. REMEDIES

9.1 Each Party acknowledges that damages alone may not be an adequate remedy for a breach of this Agreement. Either Party may seek an injunction or other equitable relief from a court of competent jurisdiction to prevent or stop a breach, in addition to any other remedy available to it.

9.2 Each Party is liable to the other only for loss that the other Party proves was caused by its breach of this Agreement. Neither Party is liable to the other for any indirect or consequential loss, or loss of profit, arising under this Agreement.

## 10. PERSONAL DATA

10.1 The Parties do not expect to exchange personal data for the Purpose. If either Party does disclose personal data, the Recipient shall handle it in accordance with the Personal Data Protection Act 2010 (Malaysia) or the Personal Data Protection Act 2012 (Singapore), as applicable, use it only for the Purpose, and protect it with reasonable security arrangements.

## 11. ASSIGNMENT

11.1 Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party, which shall not be unreasonably withheld. Either Party may, however, assign this Agreement without consent to a successor to all or substantially all of its business in a merger, reorganisation or sale.


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## 12. GOVERNING LAW AND DISPUTES

12.1 This Agreement is governed by the laws of Malaysia.

12.2 The Parties shall first try in good faith to resolve any dispute arising out of this Agreement through discussions between their senior managers for a period of thirty (30) days. If the dispute is not resolved, either Party may refer it to mediation administered by the Asian International Arbitration Centre (AIAC) in Kuala Lumpur, and failing settlement within sixty (60) days, to the courts of Malaysia, which shall have non-exclusive jurisdiction.

12.3 Nothing in this Clause 12 prevents either Party from seeking urgent injunctive relief in any court of competent jurisdiction.

## 13. GENERAL

13.1 This Agreement is the entire agreement between the Parties about its subject matter and replaces any earlier understanding about it.

13.2 Any change to this Agreement must be in writing and signed by both Parties. A failure or delay in exercising a right is not a waiver of it.

13.3 If any provision of this Agreement is found to be invalid or unenforceable, the rest of this Agreement remains in effect.

13.4 Notices must be in writing and sent by hand, courier or email to the addresses set out above (or as updated by notice), and take effect on receipt.

13.5 This Agreement may be signed in counterparts, including electronically, which together form one agreement. Each Party bears its own costs of preparing this Agreement.

## SIGNATURES

Signed for and on behalf of **KENARI BIRU SYSTEMS SDN. BHD.**

Signature: _____

Name: _____ Designation: Director

Date: _____

Signed for and on behalf of **ORCHIDWAVE LABS PTE. LTD.**

Signature: _____

Name: _____ Designation: Director

Date: _____


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